



# **REQUEST FOR ADMINISTRATIVE STANDARDS INVESTIGATION**

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**UNDER 12 NCAC 10B .0201**

**SUBJECT: MAJOR DONNIE STEVE FREEMAN, JR., LEE COUNTY SHERIFF'S OFFICE**

**COMPLAINANT: BENJAMIN ALLEN**

**DATE: 04/27/2026**

# Evaluating the Certified Officer, Not Retrying the Case

## OFFICER PROFILE

**Subject:**

Major Donnie Steve Freeman, Jr.  
(Formerly Lead Detective)



**Agency:** Lee County Sheriff's  
Office (LCSO)



**Underlying Matter:** State v. Allen  
(Lee County File No. 19CR  
051799)

**Audit Focus:**

12 NCAC 10B Compliance  
(Truthfulness, Candor, Moral  
Character)



## THE CORE THESIS

This complaint asks the Commission to evaluate a certified senior officer's compliance with the rules governing truthfulness, candor, lawful arrest, evidence integrity, and freedom from disqualifying conflicts of interest. The issue is not the outcome of a trial; it is the integrity of the state certification system.

# The Illusion of External Oversight at Lee County

## The Policy Illusion

LCSO Policy 02-13 explicitly cites external CALEA standards (e.g., CALEA 1.2.4) for constitutional arrest practices, field training, and ethics.

## The Reality Gap

**LCSO is NOT CALEA-accredited** (unlike the neighboring Sanford Police Department). There is **zero external CALEA audit** verifying compliance with these adopted benchmarks.

## Jurisdictional Imperative

Because LCSO invokes CALEA without external accreditation, the NC Sheriffs' Education and Training Standards Commission (G.S. 17E) is the only functional oversight body capable of auditing this misconduct.

# The Custody and Probable Cause Black Box

Sworn trial testimony by Freeman conflicts directly with contemporaneous magistrate paperwork and Lt. Smith's testimony regarding the exact moment and authority for restraint.

1. Custody Dispute

2. The Oral Warrant

Freeman presented probable cause to the magistrate entirely orally.

## The Un-Auditable Void

- Zero contemporaneous notes retained.
- Zero written probable-cause statements.
- Zero verbatim records.

This creates an un-auditable sequence of events, shielding the officer's claims from *Franks v. Delaware* scrutiny and masking potential premature Miranda attachments.

# Material Distortion of Recorded Witness Statements

| Witness                 | Actual Audio Recording (Source)                                                                         | Freeman's Sworn Affidavit/Testimony                                           |
|-------------------------|---------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| Joseph DeMarco          | Described leaving as fear-based flight.                                                                 | Characterized as an organized search and rescue effort.                       |
| Steve Happel            | Explicitly denied hearing any screaming from his vantage point.                                         | Asserted witness corroboration of screaming.                                  |
| Carmen Love             | Did not recognize suspect's name; no mention of a bonfire; described accuser as forceful about staying. | Attributed a bonfire-and-departure confirmation creating a concern narrative. |
| Schooly's Bar Encounter | Chaotic and hostile encounter.                                                                          | Ordinary social meeting.                                                      |

# Effecting Arrest Without Testing Physical Plausibility

## Accuser's Unverified Claims



- Complete darkness



- Weather felt good



- Fleeing barefoot through dense woods and briars



## Verified Environmental Constraints



- **Illumination:** 75% lunar illumination at 2:51 AM (October 19, 2019)



- **Weather:** 43F / 93% humidity (NOAA verified)



- **Terrain:** Open grass and airfield terrain

Freeman executed a felony arrest without performing basic scene reconstruction, biomechanical checks, or lighting verification.

# Premature Classification and Ignored Alternative Leads

## The 4:17 PM Anomaly

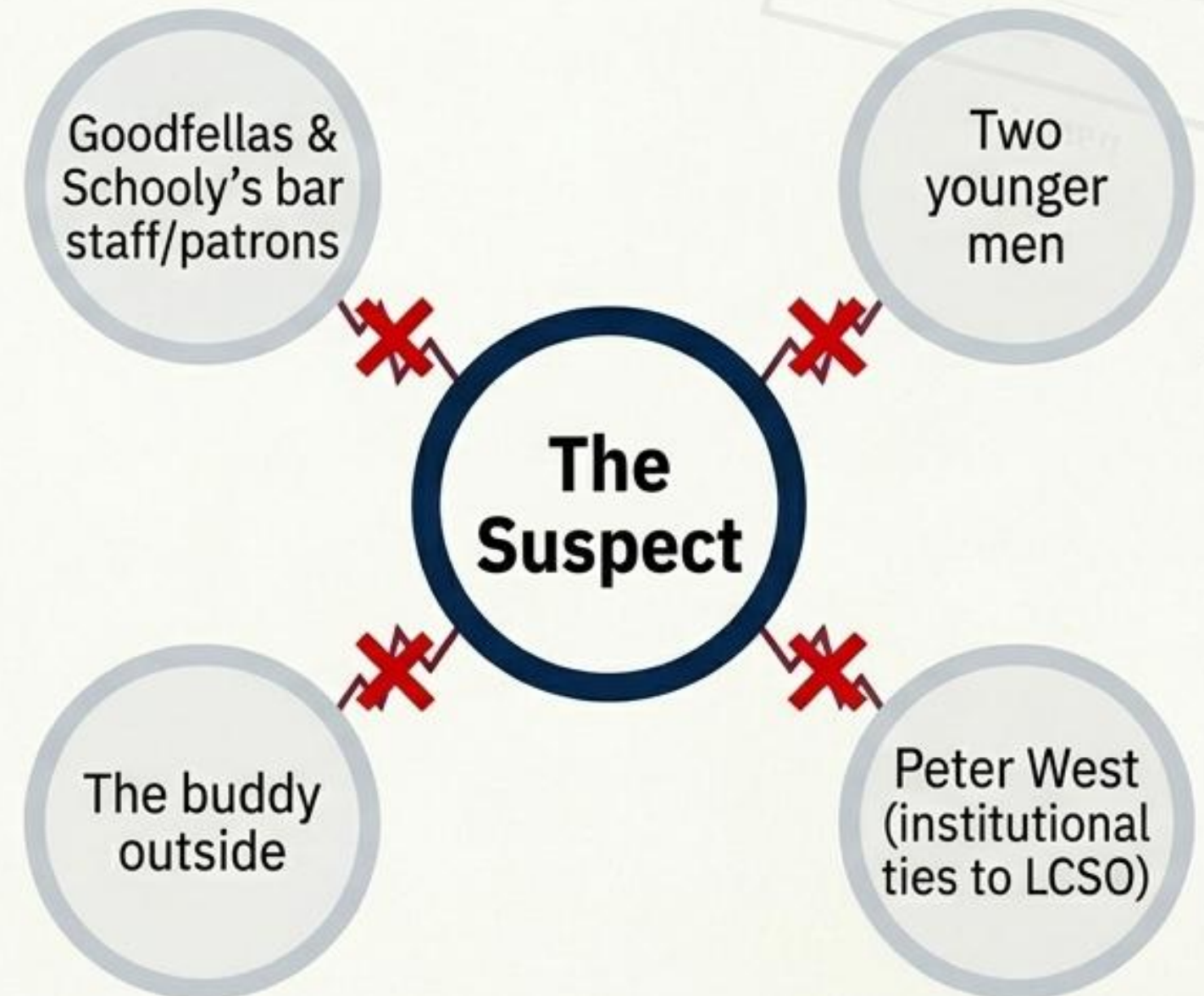
4:17 PM

The **incident** report was coded as a completed **first-degree rape** at exactly 4:17 PM—entered before substantive recorded interviews were conducted.



- Use of leading/suggestive interview tactics to force ambiguous statements into the prosecution's theory.

## Investigative Tunnel Vision



# Shortcuts in Suspect Rights and Scene Processing

## Rights Defects

### DNA Consent Form

I, [Suspect Name], hereby consent to the collection of my DNA sample for investigative purposes.

**UNREAD**

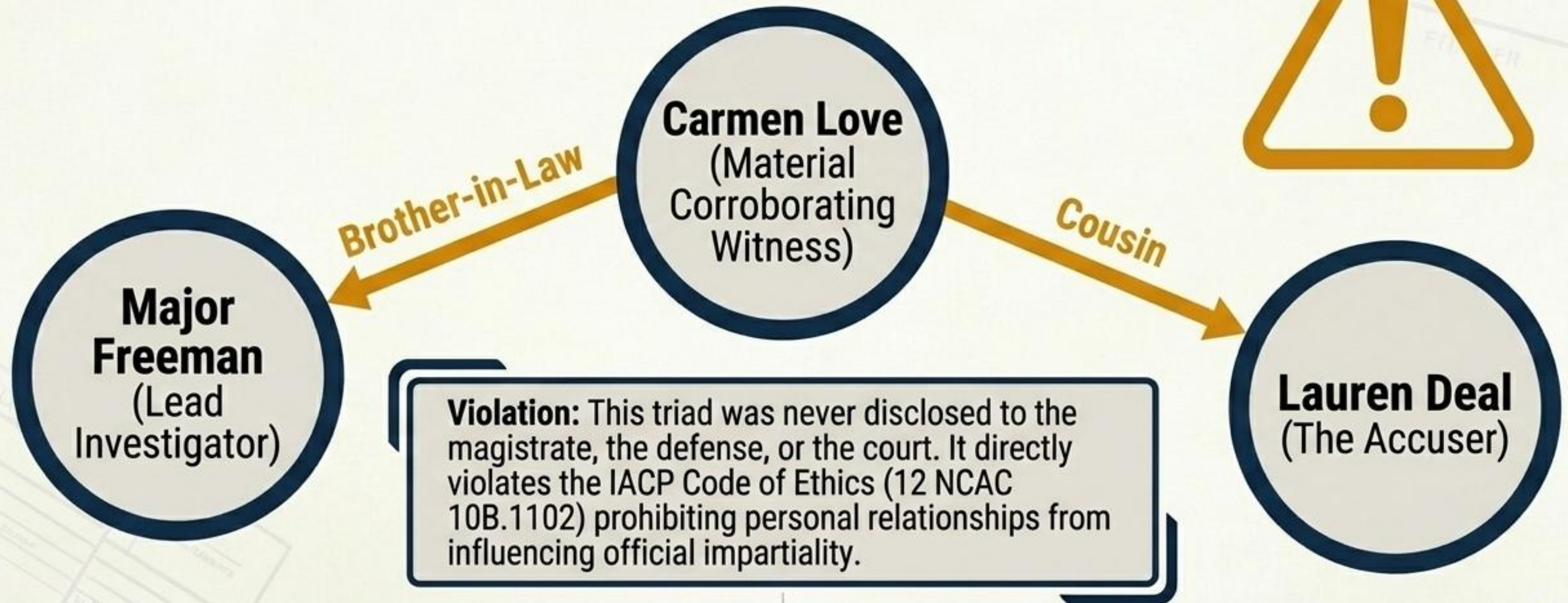
Only the **first sentence** of the DNA-swab consent form was read to the suspect. No explanation of the right to refuse or consult counsel. Suspect **held under continuous supervision** while Freeman traveled.

## Evidence Handling Voids

- ☐ • The primary scene of a felony (the bedroom) was abandoned.
- ☐ • No photographs or measurements taken.
- ☐ • No Alternate Light Source (ALS) examination.
- ☐ • No biological evidence or bedding collected.
- ☐ • Porch items seized without gloves or sealed packaging.

# The Undisclosed Familial Conflict of Interest

## Conflict Web



# Failure to Check Narrative Drift and External Influence



## Failure to Preserve and Disclose

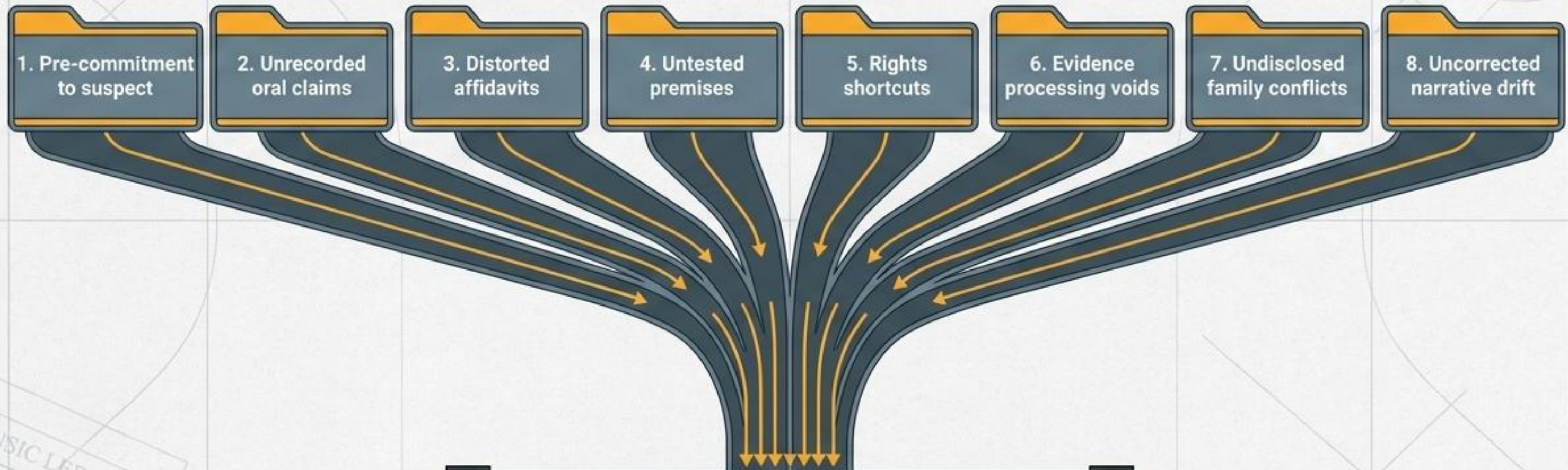
Freeman allowed sworn **affidavit** language and testimony to **drift** materially from their recorded origins to their final trial presentation **without** correcting **misleading impressions**.

## Failure to Preserve and Disclose

This failure **violates** core **Brady/Giglio** and **Napue** principles, raising severe **due process** concerns.

# Anatomy of a Systemic Failure

## Cumulative Misconduct Analysis



### Total Breakdown of Good Moral Character

These are not isolated errors. Combined, they constitute a complete breakdown of the Good Moral Character standard required by 12 NCAC 10B.0301(12) and State v. Benbow.

FORENSIC LEDGER

# The Master Regulatory Crosswalk

| Factual Action               | Commission Rule           | NC Statute                              | CALEA Benchmark           |
|------------------------------|---------------------------|-----------------------------------------|---------------------------|
| <b>False Sworn Testimony</b> | 12 NCAC<br>10B.0204(c)(1) | G.S. 14-209<br>( <b>Perjury</b> )       | 1.1.1 Oath of Office      |
| <b>Affidavit Distortion</b>  | 12 NCAC<br>10B.0205(2)(b) | G.S. 14-225<br>( <b>False Reports</b> ) | 1.2.3 <b>Brady/Giglio</b> |
| <b>Undisclosed Conflict</b>  | 12 NCAC 10B.0103(21)      | G.S. 14-230<br>( <b>Misconduct</b> )    | 1.1.2 Code of Ethics      |
| <b>Evidence Voids</b>        | 12 NCAC 10B.0301(12)      | G.S. 15A-256<br>(Inventory)             | 83.2.1 Crime Scene        |

# The Decertification Sanctions Framework



# The Requested Procedural Path Forward



**The Commission has the authority and the mandate to ensure accountability where agency-level and external accreditation checks have failed.**

# Source Material Ready for Division Audit

|                                                                                     |                                  |                                                                                                                           |
|-------------------------------------------------------------------------------------|----------------------------------|---------------------------------------------------------------------------------------------------------------------------|
|    | <b>Transcripts &amp; Records</b> | Certified trial transcripts (State v. Allen); Magistrate file; ACADIS certification records.                              |
|   | <b>Audio &amp; Video</b>         | Freeman/Love recorded call; DeMarco, Happel, and Deal audio interviews; Goodfellas and Schooly's bar surveillance video.  |
|  | <b>Scientific &amp; Digital</b>  | NOAA weather records; lunar illumination data; property photographs; social-media evidence mapping the familial conflict. |

[Complainant stands ready to provide all source materials and assist the staff investigation in any manner consistent with Division procedures.]